

Santosh Pathak v. State of U.P. & 3 Others

Allahabad High Court · Division Bench · 16 July 2014 · 2014 SCC OnLine All 11161 · Criminal Misc. Writ Petition No. 11824 of 2014 · **Writ petition disposed of; FIR not quashed; arrest to comply with s.41(1)(b)/41-A Cr.P.C.**

HEADNOTE

An FIR under Section 135 of the Electricity Act, 2003 that discloses a cognizable offence will not be quashed. As the s.135 offence does not entail a sentence exceeding seven years, arrest must not be effected mechanically: if the accused is to be arrested, the police must comply with Section 41(1)(b) read with Section 41-A Cr.P.C., a violation being open to complaint before the Magistrate; and if the offence is compoundable, the accused may seek his remedy under the compounding provisions of the U.P. Electricity Supply Code, 2005.

HOLDING-UNITS

INTERPLAY · EA2003::135

FIR not quashed; arrest safeguards for a ≤ 7 -year offence; compounding remedy

QUESTION

Should an FIR under s.135 be quashed, and what safeguards attend arrest for such an offence?

HOLDING

The FIR disclosing a cognizable s.135 offence is not quashed. But the offence not entailing a sentence over seven years, arrest cannot be mechanical: the police must comply with s.41(1)(b) read with s.41-A Cr.P.C. if they propose to arrest, and a violation may be raised before the Magistrate. If the offence is compoundable, the accused may seek his remedy under the compounding provisions of the Supply Code, 2005. ¶ (order)

LIMITING FACTS

FIR dated 28.05.2014, Case Crime No. 186 of 2014, u/s 135 Electricity Act, P.S. Naujhil, Mathura

PRINCIPLE TAGS

s135-arrest-safeguards-and-compounding-remedy For a s.135 electricity-theft offence (≤ 7 years), arrest must follow the s.41(1)(b)/41-A Cr.P.C. safeguards and cannot be mechanical; the accused may compound under the Supply Code. ¶ (order)